

		Further, if service was by email, there is no declaration stating that the electronic service address is the client's current electronic service address as required under rule 3.1362. Accordingly, Moving Attorney is ordered to provide updated proofs of service to the Court on or before the hearing date showing that Plaintiff was properly served with the moving papers either by mail or email. If service was by email, Moving Attorney shall provide a supplemental declaration stating that the electronic service address is the client's current electronic service address as required by rule 3.1362(d)(2). If Moving Attorney provides proof that the moving papers were properly and timely served on the client, the motion to be relieved will be GRANTED. The order relieving counsel will be effective upon counsel filing a proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (Cal. Rules of Court, Rule 3.1362(e).) Moving Attorney to give notice.
5.	30-2025-01499688 Barrera vs. Toyota Motor Sales, USA Inc	1. Case Management Conference 2. Demurrer to Complaint 3. Motion to Strike Portions of Complaint Defendant, Toyota Motor Sales, U.S.A., Inc.'s demurrer and motion to strike directed at the Complaint of Plaintiffs David Barrera and Maria Barrera (ROA 33, 37) set for hearing on May 14, 2026, are MOOT. A First Amended Complaint was filed on May 1, 2026. (ROA 87). When a plaintiff files an amended complaint after a demurrer or motion directed to the original complaint is filed, but before they are decided, the demurrer or motion becomes moot. (<i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468, 477; <i>State Compensation Ins. Fund v. Superior Court</i> (2010) 184 Cal.App.4th 1124, 1130-1131; <i>Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.</i> (2004) 122 Cal.App.4th 1049, 1054. "[A] plaintiff has a right to amend his or her pleading at any time before a responsive pleading is filed and even after a responsive pleading is filed up to the time of the hearing on the demurrer." (<i>Barton v. Khan</i> (2007) 157 Cal.App.4th 1216, 1221 [finding that trial court erred in refusing to accept the amended complaint for filing and explaining that the clerk should have accepted amended complaint filed three days before hearing on a demurrer to complaint, and had clerk done so, the hearing on the demurrer would have been taken off calendar].) Accordingly, the hearing on May 14, 2026, is VACATED. IT IS SO ORDERED. The <u>Case Management Conference</u> is CONTINUED to June 11, 2026 in Department C34 at 9:00 a.m. The Court orders clerk to give notice.
6.	30-2024-01415362 Vascular Imaging Professionals, Inc vs. Advanced Cardiology Center	1. Motion to Quash Discovery Subpoena Based on applicable law, and for the reasons set forth herein, Defendants Advanced Cardiology Center ("ACC") and Syed J. Raza's ("Dr. Raza") (together, "Defendants") Motion to Quash Subpoena to Bank of America is GRANTED.

This is a collections action in which Plaintiff asserts a cause of action for breach of contract against both Defendants, and a cause of action for breach of personal guarantee against Dr. Raza. The contract is alleged to have been entered into on May 20, 2022 and concerned the provision of nuclear imaging services by Plaintiff to Defendants. (FAC ¶ 9; ROA 44, Notice of Errata.) Defendants are alleged to have breached the contract by:

- Failing to complete the three-year term
- Failing to utilize a minimum of fifty service days per year
- Failing to honor the exclusivity provision of the Agreement and
- Failing to reimburse Plaintiff for its out-of-pocket expenses

(FAC ¶ 12.)

The subject subpoena was issued by Plaintiff Vascular Imaging Professionals, Inc. to third party Bank of America. It seeks:

Category No. 1: All statements reflecting balances, transfers, deposits and withdrawals from accounts held by SYED J. RAZA M.D., INC. or ADVANCE CARDIOLOGY MEDICAL GROUP from January 1, 2022, to the present, including without limitation, statements from Account Number [REDACTED]4118.

Category No. 2: All statements reflecting balances, transfers, deposits and withdrawals from account held jointly by SYED J. RAZA M.D., INC. or ADVANCED CARDIOLOGY MEDICAL GROUP, on the one hand, and SYED J. RAZA, M.D., on the other hand, from January 1, 2022, to the present, including without limitation, statements from Account Number [REDACTED]4118.

Category No. 3: All records, including account statements, check images, deposit and withdrawal slips, and other transaction records, reflecting transfers of funds between or among any account held by SYED J. RAZA M.D., INC. or ADVANCED CARDIOLOGY MEDICAL GROUP, on the one hand, and SYED J. RAZA M.D., on the other hand from January 1, 2022, to the present.

Category No. 4: All records, including account statements, check images, deposit and withdrawal slips, and other transaction records, reflecting transfers of funds between or among any account held by SYED J. RAZA M.D., INC., ADVANCED CARDIOLOGY MEDICAL GROUP, or SYED J. RAZA M.D., on the one hand, and Modern Nuclear Inc., on the other hand, from January 1, 2022, to the present.

Pursuant to Code of Civil Procedure section 1987.1, a party may move for an order “quashing [a] subpoena entirely, modifying it, or directing compliance with it upon those terms and conditions as the court shall declare, including protective orders.” (Code Civ. Proc., § 1987.1, subd. (a) and (b)(1).)

When requested discovery material “falls manifestly within the Constitution's protected area of privacy. . . the requested material is constitutionally protected, the ordinary yardstick for discoverability, i.e., that the information sought may lead to relevant evidence, is inapplicable. [Citation.] Moreover, it is not enough to show the matters encompassed by the right of privacy are merely relevant to the issues of ongoing litigation. There must be a careful balancing of the compelling public need for discovery against the fundamental right of privacy.” (*Juarez v. Boy*

Scouts of Am., Inc. (2000) 81 Cal.App.4th 377, 392, disapproved of on another ground by *Brown v. USA Taekwondo* (2021) 11 Cal.5th 204.)

Individuals have a legally recognized privacy interest in their personal financial information under the California Constitution. (*Look v. Penovatz* (2019) 34 Cal.App.5th 61, 73; *SCC Acquisitions, Inc. v. Sup.Ct. (Western Albuquerque Land Holdings, LLC)* (2015) 243 CA4th 741, 755.) While corporations also have a right to privacy, it is more limited, as it is not a constitutional right. (*SCC Acquisitions* at 755-756.)

Defendants object to the production of the requested documents by Bank of America on privacy grounds. Defendants contend that third parties' rights of privacy are implicated because the requested documents would release the names of Plaintiff's competitors, along with the payment amounts of the other services utilized by Defendants. Further, Defendants contend that the information would provide Dr. Raza's personal financial status to Plaintiff by allowing Plaintiff to see how much Dr. Raza earns from his medical practice—which is not relevant to a breach of contract action.

Plaintiff contends that Defendants' and third parties' privacy interests are outweighed because the requested information is expected to establish alter ego liability; the documents are relevant to the issues of timing and Dr. Raza's true motivation in breaching its contract with Plaintiff; and the documents will enable Plaintiff to pinpoint exactly when Defendants switched from using Plaintiff to using the services of Plaintiff's competitor, Modern Nuclear Inc. (Medel Decl. ¶¶ 2-5.) Plaintiff further contends that any privacy concerns can be ameliorated through the use of a stipulated protective order, and documents can be initially produced only to Defendant's counsel. (Medel Decl. ¶ 6.)

"Under the alter ego doctrine . . . when the corporate form is used to perpetrate a fraud, circumvent a statute, or accomplish some other wrongful or inequitable purpose, the courts will ignore the corporate entity and deem the corporation's acts to be those of the persons or organizations actually controlling the corporation, in most instances the equitable owners. The alter ego doctrine prevents individuals or other corporations from misusing the corporate laws by the device of a sham corporate entity formed for the purpose of committing fraud or other misdeeds." (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 538 (internal citations omitted).)

Here, the FAC alleges that Dr. Raza was a signatory to the Equipment and Personnel Lease and that he personally guaranteed it. (FAC ¶¶ 9-10.) Additionally, Dr. Raza is alleged to have separately executed a written personal guarantee of payment for all amounts due under the Agreement. (FAC ¶ 15.) Thus, because Dr. Raza would already be liable for any breach of either of the contracts at issue in this case, it is unclear why Plaintiff would need to additionally prove that ACC is an alter ego of Dr. Raza.

Further, there is other, less intrusive, discovery which can be taken to elicit evidence to support an alter ego theory. Plaintiff has not demonstrated that any such other discovery has been taken, or explained why the highly intrusive and extremely broad requests in the subpoena are necessary at this juncture.

Plaintiff's proffered explanation that the requested documents will show Defendants' motivation for breaching the contracts fares no better. Plaintiff has not explained how or why motive would be an element of its causes of action for breach of contract.

		As to Plaintiff’s contention that the requested documents would show when Defendants began using the services of Plaintiff’s competitor, Plaintiff has not explained why less intrusive methods cannot be used to gather this information. The same applies to Plaintiff’s contention that the documents will help Plaintiff prove damages (ostensibly, for breaching the exclusivity provision). Accordingly, the <u>motion to quash</u> is GRANTED. Both parties’ requests for <u>sanctions</u> are DENIED. Per CCP §1987.2, the court does not find the motion or opposition were made or opposed in bad faith or without substantial justification. Defendants to give notice.
7.	30-2024-01431381 Hart vs. Pacific Specialty Insurance Company	1. Motion to Compel Production Plaintiff, Rory Hart (“Plaintiff” or “Hart”), moves for an order compelling Defendant, Pacific Specialty Insurance Company (“Defendant” or “PSIC”), to provide further responses and to produce documents responsive to Plaintiff’s Request for Production of Documents, Set One (“RFP”), as well as imposing monetary sanctions in the amount of \$16,900 against Defendant, PSIC. A Joint Report was timely filed and served pursuant to the Court’s February 26, 2026 Order. (See ROA 96.) The Joint Report provides that on September 26, 2025, the parties agreed on a mutual one-week extension for Defendant to respond to Plaintiff’s September 22, 2025, meet and confer letter, which extended Plaintiff’s motion filing deadline from September 30, 2025, to October 7, 2025. (Joint Stipulation, ¶ 4.) The instant motion to compel was timely filed on October 6, 2025. The Joint Report provides that the parties engaged in further meet and confer efforts by telephone, that Defendant provided supplemental responses, and that RFP, Nos. 15-26, 29, and 51-52 have been resolved. What remains at issue is RFP, Nos. 27, 28, and 30. (Joint Report, ¶ 2.) <u>Defendant contends</u> that requested documents are not relevant, are protected by the constitution right to privacy, and contain trade secrets, and that these requests require a showing of compelling need that outweighs the serious privacy interests of PSIC personnel. Defendant asserts that PSIC’s personnel records include confidential performance evaluations that may include highly personal information and that Plaintiff has not attempted to obtain any relevant information sought by less intrusive means. <u>Plaintiff contends</u> that personnel records no longer require a showing of compelling need, and that trial court need only balance a plaintiff’s need for the personnel files against the privacy interests of a defendant’s employees. A demanding party may move for an order compelling a further response to a demand for inspection if a statement of compliance with the demand is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc. § 2031.310(a).) The motion must set forth specific facts showing good cause justifying the discovery sought by the discovery request. (Code Civ. Proc. § 2031.310(b)(1).) For a request to produce documents, “a party who seeks to compel production must show ‘good cause’ for the request . . . but where, . . . , there is no privilege issue or claim of attorney work product, that burden is met simply by a fact-specific